

1 **SENATE FLOOR VERSION**

2 February 13, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 530

By: Hines of the Senate

and

Miller of the House

6
7
8
9 An Act relating to the Oklahoma Veterans Commission;
10 authorizing the establishment of the State of
11 Oklahoma Veterans Foundation; stating purpose of
12 Foundation; allowing Foundation to receive
13 contributions; directing incorporation of Foundation;
14 providing authority for designation of initial
15 membership and election of the board of directors;
16 prohibiting certain board members from voting on
17 certain matters; prohibiting certain preferential
18 consideration; requiring financial records to be
19 available for audit; providing certain exceptions;
20 providing for codification; and declaring an
21 emergency.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 441 of Title 72, unless there is
25 created a duplication in numbering, reads as follows:

26 A. There is hereby authorized the establishment by the Oklahoma
27 Veterans Commission of a private, not-for-profit, charitable
28 organization to be known as the "State of Oklahoma Veterans

1 Foundation". The Foundation shall be for the purpose of soliciting,
2 accepting, receiving, holding, investing, managing, utilizing, and
3 expending contributions of money, real or personal property, and
4 services, for use in support of the activities, services,
5 facilities, properties, and programs of the Commission and the
6 Oklahoma Department of Veterans Affairs, as they support veterans
7 who are residents of this state. Such contributions shall be
8 supplementary to any state funding received by the Department and
9 shall provide a means to further assist the needs of the veteran
10 community in this state.

11 B. The Foundation created pursuant to this act shall not be a
12 public body and may receive contributions from any public or private
13 source to carry out the purposes of this act including, but not
14 limited to, gifts or grants from private individuals, companies,
15 foundations, corporations, and others in the private and public
16 sectors.

17 C. Upon incorporation, the Foundation shall operate exclusively
18 for charitable and educational purposes and shall secure tax-exempt
19 status under the appropriate provision of Sections 501(c) and 509(a)
20 of the Internal Revenue Code of 1986, as amended, 26 U.S.C.,
21 Sections 501(c) and 509(a).

22 D. The Department shall be authorized to create the board of
23 the Foundation. The commissioners of the Oklahoma Veterans
24 Commission shall determine the initial members of the Foundation and

1 elect the board of directors of the Foundation. No employee of the
2 Department shall be a voting member of the board of directors of the
3 Foundation. Any voting member of the board of directors of the
4 Foundation who may have a financial interest in an action under
5 consideration by the Foundation shall abstain from voting on any
6 such matter.

7 E. No administrator of the Department shall provide any
8 preferential consideration to a potential resident of a State
9 Veterans Home in the application or admission process due to any
10 prior or pledged contribution to the Foundation.

11 F. The Foundation shall make all of its financial records and
12 documents including work papers, except for the names of donors and
13 other privileged or confidential materials, available to auditors
14 who are performing audits of the Department.

15 SECTION 2. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19 COMMITTEE REPORT BY: COMMITTEE ON VETERANS AND MILITARY AFFAIRS
20 February 13, 2025 - DO PASS AS AMENDED BY CS
21
22
23
24